Welcome to the LVNA

Villager

The Newsletter of the Lakewood Village Neighborhood Association

Volume 58 Number 2 Circulation: 1,650 February 2014 Sunnyvale, California Editor: Phyllis Fowler

Monthly Meeting: Thursday, February 13th !!!

At 6:00 pm at the Lakewood Park Building

Our guests: Chief Grgurina from Sunnyvale Public Safety And Chief Mike Sellers from the City of Santa Clara



Vice President's Letter

-Wendy Stanley

It is with great sadness that I tell you that Sarah Daugherty has passed away. Sarah was a big part of the LVNA for as long as I can remember. She was a newsletter walker, a dumpster monitor, helped at both the annual picnics and the gatherings after holiday parades, and almost anything else you asked her to do. She will be greatly missed. For those of you who don't know, she was also our LVNA president's mother.

Last month we had **Scott Morton** from Sunnyvale Park Department to update us on park upgrades. It turns out even though Lakewood Park is next up for improvements, we will have to wait until the branch library issue is decided. The park department doesn't want to start work until they know where the branch library will be placed so they are better able to put the rest of the park to its best uses.

We also had people from the **Mt View Day Workers** program. They told us about the different services they provide. If interested you can reach them at http://dayworkercentermv.org or call **650-903-4102** .

Elections for the LVNA board will be held in March. Judy has maxed out her time as president and we haven't had a secretary this past year.

(Continued on Page 5)

Special Meeting Night!

This month the monthly meeting is taking place on **Thursday** instead of Wednesday to accommodate our special guests: *Chief Grgurina from the Sunnyvale Public Safety and Chief Mike Sellers from the Santa Clara Police Department.*

They will be on hand to tell us how they intend to deal with traffic in the area during home games at the new 49ers stadium. **Our neighborhood will be impacted!**

We have also invited residents from the surrounding mobile home parks and condos. Please be sure to attend this very informative meeting Thursday February 13th at 6pm (notice earlier time also) at the Lakewood park building.

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Newsletter Walker Needed

This past month we lost one of our walkers. Sarah Daugherty had been walking her route when I took over 10 years ago and probably had been doing it since the LVNA started delivering newsletters! Those of you who live on Lakewood between Meadowlake and the end of the village may have met her and hopefully you will miss her presence.

I now need a walker to take over her route. It only takes about 1/2 an hour once a month. If interested please call

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Columbia Neighborhood Center



Free Tax Preparation Assistance

When: February 22nd
March 1st, 22nd, & 29th
Time: 10 am – 2 pm
Where:
Columbia Neighborhood Center 739 Morse Ave

Free help with taxes for families with a total gross income of less than $52,000 . Bring social security cards/numbers for each family member; W-2, 1099 and 1098 forms; child care provider information; landlord name, address and phone; a voided check for direct deposit; last year's tax return if available. For further information, visit www.tax-aid.org or call (408) 730-7800.

Or by Appointment:

When: Thursdays & Fridays
Where: Sunnyvale Community Center
725 Kiefer Rd
Cost: FREE

Call Carol @ (408)475-1335

AARP volunteers do non complicated taxes for all in-

Youth Drop-In Gym



Basketball: Fridays 7 – 10 pm

Indoor Soccer: Mondays 7 – 9 pm
Saturday 7—10 pm
Where: Columbia Neighborhood Center
Cost: 50¢ per visit for residents
($1 for non-residents).



Must be Middle or High School student.
School ID REQUIRED for entry!

Drop-In Gym will be cancelled if there are no participants in the first hour. ◆



Free Legal Clinics

When: First Saturday of the month
Time: 10 am – Noon
Where: Columbia Neighborhood Center
739 Morse Ave.
Cost: Free!

Columbia Neighborhood Center and South Asian Bar Association of Northern California partner to provide free legal clinics. Get a 20 – 30 minute legal consultations on any legal matter, provided by a licensed attorney.

No appointments are necessary. First come, first served. Upcoming clinics on March 1st and April 5th .◆

Winter Camp

When: February 18th—21st
Time: 8:30am—4:30pm
Where: Columbia Neighborhood Center
Cost: $25 for the week—add $10 for extended care (3 – 5:30 pm) for the week (1 to 4 days).

A low-cost recreation camp will be held over Winter Break for grades 1 to 8. In-person registration starts Tuesday, Feb. 4 at CNC and continues M-F, 8:30 am to 4:30 pm, and Tuesday evenings.

Camp is open to students attending Bishop, San Miguel, Lakewood, Fairwood, and Columbia, or who live in the CNC service area. Cash or check only, no refunds



Yoga Class

When: Every Tuesday
Time: 6:00 – 6:50 pm
Where: Columbia Neighborhood Center
Cost: Free

Volunteer instructors will show you how to become stronger and more flexible, and will provide some relaxation too!

Children 9 and up are welcome if accompanied by a parent. Bring an exercise mat or towel, and wear loose fitting clothes. Come 10 minutes before the beginning of class when registering for the first time.◆

ZUMBA CLASS!



When: Every Wednesday
Time: 7 – 8 pm
When: Every Friday
Time: 6 – 7 pm
Where: Columbia Middle School Gym
739 Morse Ave
Cost: $1.00 per class

Come and dance your pounds off at this fast-paced, energetic class. All participants are required to sign a registration form and waiver prior to their first class, so come a few minutes early to sign up!
No Children under 10 years old will be allowed to participate or watch.◆

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Rebuttal to "Sunnyvale in Gun Battle with the NRA"

By Paul Massey

The article "*Sunnyvale in Gun Battle with the NRA*" by Fred Fowler in the last issue of the *The Villager* deserves a reply. Mr. Fowler seems to think that provided a sufficient number of people are in favor of a law, that it is beyond the pale for the courts to get involved. This demonstrates a profound misunderstanding of how our system of government actually works. It is the job of the judicial branch to examine dispassionately all laws to see if they comport with the Constitution, irrespective of the level of public support. That is the only measure of a law's validity and a completely legitimate inquiry. Indeed, there are numerous examples, both of laws enjoying broad support that were struck down, as well as laws with little support which were nonetheless upheld as Constitutional. That "temporarily inflamed passions" (in the words of Alexander Hamilton) could so easily cause bad laws to be enacted was precisely the reason the Founding Fathers included both judicial review and staggered the Senate elections in the Constitution.

Even if public support were the proper measure, Mr. Fowler's argument fails on its own logic. For the November 2013 election, there were 55,233 registered voters in Sunnyvale. Of those, 18,639 (33.7%) expressed an opinion on Measure C. The 66% figure he cites is the breakdown within that group (12,404 in favor vs 6235 opposed). Thus, far from "*making their will known in an unmistakable way,*" a small minority (22.5%) decided the issue. The only thing unmistakable is the relative indifference of the vast majority of Sunnyvale residents.

Rather than discuss the actual legal claims, the remainder of Mr. Fowler's article is spent in a series of *ad hominem* attacks against the plaintiffs and their lawyers. In one case, he objects to the location of the national headquarters of an organization to which a group of plaintiffs belongs, hoping to discredit by association. In another, he criticizes the lawyers for having the temerity to *advertise* "Firearms Law" as a field of expertise. I wonder if Mr. Fowler picks his dentist by looking at advertisements for automobiles.

It is no surprise that a group of local gun owners and a local business would be directly impacted by Measure C and would seek to employ the best legal team they could find to represent them. Nor is it a surprise that Sunnyvale employed the help of the best legal team they could find. It is also common practice in this type of lawsuit to ask for the losing side to pay the legal costs of the others. Mr. Fowler is simply engaging in metaphorical tar and feathering.

Most egregious, however, is that he fails to see the irony in criticizing the use of high-priced out of area legal services by the plaintiffs, while praising the high-priced out of area legal services that have come to defend Sunnyvale. The fact that they are working *pro bono* does not change the fact that the city is also bringing out "the heavy artillery" (in his own phrase). Those firms still have costs that have to be paid by someone. And lest anyone forget, the Yes on C group raised about $6000, more than half of which came from a single donor - former New York City mayor Michael Bloomberg. They also outspent the No on C group by several thousands of dollars. None of which is the least bit material to whether or not a law deserves its time in court.

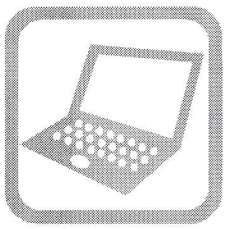
It's time we started debating the merits of proposed legislation and laws, rather than attack the motives of those with whom we disagree.◆

For Fred Fowler's response go to page 4. –Editor

Computer & Web Essentials

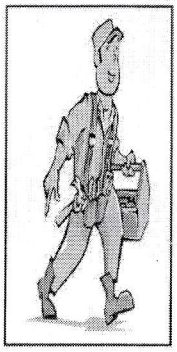
When: March 5th
Time: 6:30 PM – 8:15 PM
Where: Fairwood Elementary School Library

Learn the basics of smart computing including getting your "how to" questions answered such as using a computer, the web, and e-commerce as well as creating and editing documents, resumes and presentations.



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This free workshop is sponsored by Vision Literacy and the City of Sunnyvale.



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Lakewood Gun Debate Response

By Fred Fowler

Last month I wrote an article describing the events surrounding the passage of "Measure C", a local gun control ordinance, by the voters of Sunnyvale.

That article has inspired a response. Our Lakewood Village neighbor Paul Massey has submitted an article to rebut some of the points he says I tried to make. Among other things, he suggests that we should discuss the merits of the legislation.

After much though, I've decided that I agree with his idea. I think it makes sense to discuss the merits of the ordinance in this public forum. If we do so in respectful way, we will all get a better perspective on the issue.

The Second Amendment

Much of the legal battle over Measure C is centered around the 2nd Amendment in the Bill of Rights in the US Constitution. The amendment was drafted in 1789 and fully ratified in 1791 Here it is:

A well regulated militia being necessary to the security of a free state, the right of the people to keep and bear arms shall not be infringed.

As you can see, the 2nd Amendment is only one sentence and has two distinct clauses. Those clauses are somewhat contradictory. The first part of the sentence talks about regulation and the second about prohibiting regulation. The amendment may seem clear enough at first glance, but after only a little bit of reflection, the picture gets murky.

What did the Founding Fathers mean when this amendment was passed? People have been arguing about this ever since the Bill of Rights was first written. Some are focused on the "*well regulated militia*" part of the statement, while others concentrate on the "*shall not be infringed*" part.

During the Revolutionary War, an important part of the struggle was the "Minute Man". A Minute Man was a farmer or villager who was "ready in a minute" to drop his work, get his musket and run off to defend his community in case of attack. These Minute Men were organized into "*well regulated militias*" who trained and drilled regularly in order to be able to fight effectively.

Is the concept of the Minute Man what John Adams, Thomas Jefferson and all the others had in mind? If so, then the 2nd Amendment was meant to insure that citizens would always be able to help defend their community in times of need. The modern day incarnation of the Minute Men is the National Guard, which lets its "citizen soldiers" train and drill in military skills while living normal working lives in their communities. Some people argue that the 2nd Amendment was intended to make sure that something like the National Guard would always exist, and that any notion of a private right to bear arms outside of such an organization is not what was intended.

There are others who believe that the concept of the Minute Man was not the driving force behind the 2nd Amendment. There are writings from some of the framers of the constitution indicating that the purpose of the amendment was to prevent tyrants from taking control of the country. The thought was that since the whole population of a country would always outnumber any standing army, no despot would ever be able to conquer an armed population. It was assumed that these armed men would be organized into militias, but the Important thing was that they could never be disarmed by any hostile government.



The legal battles over Measure C are all centered on the question of whether the measure is in conflict with the 2nd Amendment or not. The answer to this question depends on what the 2nd Amendment "really means", and as I've already stated there are many conflicting points of view.

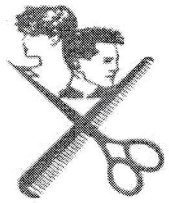
If you believe the "*shall not be infringed*" clause is the most important part of the sentence, then part of Measure C could be in conflict with the amendment. If limiting magazine capacity to a maximum of 10 rounds is found to be a form of disarmament, then that part of the measure might be in conflict with that part of the amendment.

That was then, this is now?

The court battle over Measure C will center around the meaning of the 2nd Amendment and how the measure relates to it. When the verdict comes in, the legal issue will be settled.

(Continued on page 5)

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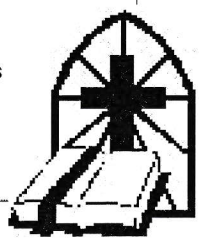
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Sunday Services
9:30 a.m. Sunday School for all ages
11:00 a.m. Worship Service

Wednesday
7:00 p.m. Corporate Prayer Meeting



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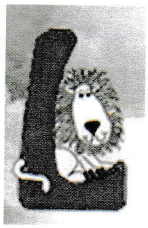
Lakewood Gun Debate Response
(continued)

Settling the legal issue is not the same as settling the community issue, however. Measure C passed for a reason. The voters who opposed Measure C had reasons. I suspect that the 2nd Amendment was not the main thing that motivated people to vote either for or against the measure.

Let's have the discussion the Paul Massey suggests! Let's discuss the merits of the legislation as it relates to Lakewood Village. Let's leave out the discussion of the 2nd Amendment when we make our cases. Let's not say we should support or oppose Measure C "because the 2nd Amendment says so". Let's talk about the measure in terms of what it means here and now, and not what it would have meant in the context of 1789.

Send in your letters to the editor, and we'll figure out a way to get them published. There may not be enough room for all of them in The Villager but we'll put them up on a website if necessary. They should be very interesting to read ◆

To send a letter to the Editor, email me at: sunnyphyl@gmail.com or mail to: 921 Lakebird Dr. Sunnyvale, CA 94089



Volunteers Needed!

Lakewood School is looking for Noon Aides and Noon Aide Substitutes to help with lunch time and supervision of students. If you enjoy working with kids and can help with supervision please stop by the Lakewood School office.



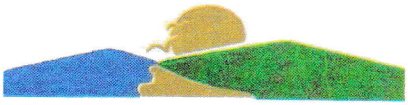
Vice President's Letter *(Cont.)*

-Wendy Stanley

Unless we get some volunteers to step up for all positions, we may have to disband the organization. That would be a real shame, as we have the new branch library and the traffic from the new 49ers stadium to deal with in the next few years. These issues will get more attention from the neighborhood as a group than individually.

So, if you have the slightest interest in these issues, I suggest you step forward and volunteer for a position on the board. We get together only twice a month - once for the board meetings and the other for the neighborhood meetings. If interested, show up at the March meeting and submit your name for a position. Voting will take place that night and new board members will start in April. ◆

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Neighborhood Crime Corner

Reprinted from "Beyond the Badge" January newsletter.

Crime Prevention Assistant (Back) in Action

The Department of Public Safety has recently promoted one of their cadets into the position of Crime Prevention Assistant (CPA), a position that has been vacant for several years due to budget constraints. The CPA position is fast becoming a popular outreach tool for our community. Currently, the CPA is reaching out to victims of burglaries and offering services to help better secure their homes by doing a home security survey. The focus is on giving back the feeling of security to a homeowner who has been a victim of a burglary.

The home security survey is an opportunity for the homeowner to have a one-on-one consultation with a trained Crime Prevention Assistant on how to best secure their home and protect their property. The home security survey will offer suggestions on ways to secure doors, windows, gates and any other unusual openings or problem areas.



The home security survey focuses on Crime Prevention through Environmental Design (CPTED) and preventing the homeowner from being a victim before the crime occurs. Future plans include hiring another CPA and starting the program city-wide to all residents, not just those that have already been victimized.

For further information refer to CrimePrevention.inSunnyvale.com

For questions and comments about the Sunnyvale DPS newsletter ***Beyond the Badge***, you can e-mail us at: pubsfty@ci.sunnyvale.ca.us

You can also subscribe to the **Beyond the Badge** newsletter at Sunnyvale.ca.gov . ◆

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Noise complaints—Desk Officer	730-7110
Neighborhood Preservation Complaints on decrepit fences, , weeds, illegal home businesses or rentals	730-7610
Animal Control	730-7178
Public Works- sidewalks, trees, streetlights, etc.	730-7505
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Drug Hotline	245-3784
Graffiti Hotline & Shopping Cart Pickup	730-7680

Street Sweeping:

Fairwood Side - 2/11 & 2/25 & 3/11

Lakewood Side - 2/18 & 3/4 & 3/18

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To submit articles or letters for publication, please contact the editor before the 28th of each month
Send your document or inquiry to Phyllis Fowler: sunnyphyl@gmail.com